

24NWCV03055 24NWCV03055

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Case Number: 24NWCV03055 Hearing Date: July 30, 2026 Dept: C

JOHN DOE (LOJK) vs

DISCOVERY PRACTICE MANAGEMENT, INC.

CASE NO.: 24NWCV03055

HEARING: 7/30/26 @ 9:30 AM

#9

TENTATIVE RULING

Defendant

DISCOVERY PRACTICE MANAGEMENT, INC. dba CENTER FOR DISCOVERY's Motion for Summary Judgment is GRANTED.

Moving party to give NOTICE.

Defendant DISCOVERY PRACTICE MANAGEMENT, INC.

dba CENTER FOR DISCOVERY (Defendant) moves for summary judgment on the Complaint of Plaintiff JOHN DOE [LOJK] (Plaintiff) on the grounds that there exists no triable issue of material fact as to any of Plaintiff's causes of action for negligence asserted against Defendant.

BACKGROUND

This is a negligence case. Plaintiff alleges

that due to Defendant's negligence, Plaintiff was subject to and/or in fact

sexually abused by two minor female patients at Defendant's Facility. (FAC, ¶

37.) Between

June 18, 2021 and July 14, 2021, Plaintiff was admitted to Defendant's Facility. (FAC, ¶ 11.) Plaintiff entered the adjacent room shared by two minor girls, S.U. and A.C. during evening hours of July 2, 2021- July 3, 2021 and engaged in illicit sexual activity with the girls. (FAC, ¶ 15.) Based thereon, Plaintiff asserts causes of action for:

1.

Negligence

(against Defendant and DOES 1-30, inclusive); and

2.

Negligence

(against Defendants DOES 31-50, inclusive).

EVIDENTIARY OBJECTIONS

Defendant's objections to the Declaration of Matthew Madaus, LCSW are OVERRULED.

Defendant's objections to the Declaration of John Doe's Father Z.I are OVERRULED.

LEGAL STANDARD

A party seeking summary judgment has the burden of producing evidentiary facts sufficient to entitle them to judgment as a matter of law. (Code of Civ. Proc., § 437c subd. (c).) The moving party must make an affirmative showing that they are entitled to judgment irrespective of whether or not the opposing party files an opposition. (Villa v. McFerren (1995) 35 Cal.App.4th 733, 742-743.) Thus, "the initial burden is always on the moving party to make a prima facie showing that there are no triable issues of material fact." (Scalf v. D. B. Log Homes, Inc. (2005) 128 Cal.App.4th 1510, 1519 (citing Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 850.)

When a plaintiff seeks summary judgment, they must produce admissible evidence on each element of each cause of action on which judgment is sought. (CCP § 437c(p)(1).) When a defendant seeks summary judgment, they have the "burden of showing that a cause of action has no merit

if the party has shown that one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action." (CCP § 437c(p)(2).)

The opposing party on a motion for summary judgment is under no evidentiary burden to produce rebuttal evidence until the moving party meets their initial movant's burden. (*Binder v. Aetna Life Insurance Company* (1999) 75 Cal.App.4th 832, 840.) Once the initial movant's burden is met, then the burden shifts to the opposing party to show, with admissible evidence, that there is a triable issue requiring the weighing procedures of trial. (CCP § 437c(p).) The opposing party may not simply rely on their allegations to show a triable issue but must present evidentiary facts that are substantial in nature and rise beyond mere speculation. (*Sangster v. Paetkau* (1998) 68 Cal.App.4th 151, 162.) Summary judgment must be granted "if all the evidence submitted, and 'all inferences reasonably deducible from the evidence' and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law." (*Adler v. Manor Healthcare Corp.* (1992) 7 Cal.App.4th 1110, 1119.)

DISCUSSION

To succeed in a negligence action, the plaintiff must show that (1) the defendant owed the plaintiff a legal duty, (2) the defendant breached the duty, and (3) the breach proximately or legally caused (4) the plaintiff's damages or injuries. (*Thomas v. Stenberg* (2012) 206 Cal.App.4th 654, 662.)

Defendant argues that it acted with due care towards Plaintiff, therefore there was no breach of duty to Plaintiff. In support of this, Defendant provides the following undisputed evidence:

- At admission Plaintiff

was a 15-year-old boy who identified as transgender. (COE Exh. G, Plaintiff John Doe's Deposition Transcript, December 14, 2023 Plaintiff's (Vol. I) Dep at 6:18-19, 23:16-24:4, 24:19-21, 25:6-10, 33:9- 19,34:9-12, 42:8-20 and 49:18-21; COE Exh. H, Plaintiff's Dep. (Vol II.) at 115:9-11, 116:5-13 and 118:9-16.)

- Defendant's facility

had rules against entering into another patient's room with frequent Bed Checks

to enforce the rules. Staff at the Facility performed frequent overnight shift bed checks of the patients (Bed Checks) by which staff visually checked on each patient every 15 minutes, with written notation of each check. (COE Exh. N, Gonderman Depo. at 46:5-13; 47:1-6 and 52:20-23; COE Exh. G, Plaintiff Dep. (Vol. I) at 102:9-22; COE Exh. E, Defendant's Rounds Sheets for July 2, 2021 through July 3, 2021.)

· In an effort to avoid being detected by Facility staff during Bed Checks by having a minor female, S.U., keep "look out" for staff, Plaintiff entered the adjacent room of shared by two minor girls, S.U. and A.C. during evening hours of July 2, 2021- July 3, 2021 and engaged in illicit activity with the girls. (COE Exh. G, Plaintiff Dep. (Vol. I) at 93: 6-14 and 106:4- 6; 27:19-28:5 and 29:1-13 and 56:7-24; COE Exh. J, Defendant's [Department of Social Services' Unusual Incident Report at p. 2]; COE Exh. K, Internal Incident Report and Incident Summary Report; COE Exh. L, Internal Incident Report and Incident Summary Report; COE Exh. I, Defendant's Compendium of Exhibits; COE Exh. E, Defendant's Compendium of Exhibits.)

· Praveen Kambam, M.D., opines that Defendant "met the standard of care for a mental health treatment center for adolescents by performing 15-minute rounds as reflected in the July 23, 2021 Facility Evaluation Report prepared by the California Department of Social Services, Community Care Licensing Division in reference to Discovery Center's Unusual Incident/Injury Report, dated July 14, 2021, expressly noting, after an unannounced visit and interviews on site, that the subject incident involving Plaintiff John Doe (LOJK) and the two minor female girls 'took place between the time the staff conducted their 15 minutes [sic] rounds.'" (Kambam, M.D. Decl., ¶ 3.)

Based upon this, the Court determines that Defendant has made a prima facie showing that there are no triable issues of material fact as to breach of duty and causation. Defendant has shown that it exercised reasonable care by having a 15-minute Bed Check policy, and Plaintiff broke Defendant's rules by leaving his room and going to the other room in between Bed Checks. The burden shifts to Plaintiff to demonstrate a triable issue of material fact.

In opposition, Plaintiff argues that Defendant stood in a special relationship with Plaintiff who was a high-risk adolescent suffering from mental incapacity.

Defendant was entrusted with continuous 24-hour oversight of its patients, including Plaintiff and the two female patients, and authority over patient room assignments within its inpatient treatment facility. (Klein v. BIA Hotel Corp. (1996)

41 Cal.App.4th 1133, 1142.) Plaintiff argues that Defendant breached its duty to provide adequate supervision. In support of this, Plaintiff evidences that that on the evening of July 2, 2021, Aaron Lopez, an employee of defendant who worked the overnight shift at the residential treatment facility, observed each patient awake in their respective bedrooms at 10:18 pm. It was not until 10:54 p.m. on the evening of July 2, 2021, when another observation of each patient was performed, at which time Plaintiff and the female patients remained awake in their respective bedrooms. Accordingly, on the evening of the subject incident, defendant, by and

through its employees, agents, and/or other authorized representatives, failed to perform the required 15-minute patient observation rounds, in violation of defendant's own protocols and the alleged applicable standard of care within its industry. This permitted plaintiff and the two female patients sufficient time to engage in the wrongful sexual conduct alleged herein. (Plaintiff's COE, Exhs. 11-12.)

Moreover, Plaintiff argues that the system of patient observation rounds in 15-minute intervals is itself an insufficient safeguard and fails to meet the standard of care applicable to licensed residential treatment programs according to the opinion of Matthew Madaus, LCSW. (Plaintiff's COE, Exh. 17, Madaus Decl., ¶¶ 24, 25, 26, 27 & 28.)

Specifically, while defendant represented to its patients and families that it provided a structured therapeutic environment supported by continuous supervision and frequent and random bed checks, the supervision system that was in place the night of the incident was one where patients could predict, anticipate, and circumvent staff monitoring. (Ibid.) In fact, one of the involved female patients reported waiting until staff completed rounds before allowing plaintiff to enter bedroom no. 9, while the other involved female patient reported acting as a lookout and warning when staff were expected to return. (Ibid.)

As to Plaintiff's resulting injury, Plaintiff contends that Plaintiff has and continues to suffer substantial emotional distress and other damages as a direct and legal result of the wrongful conduct of Defendant. (Plaintiff's COE, Exh. 21, Declaration of John Doe; COE 22, Declaration of John Doe's Father, Z.I.)

The Court finds that Plaintiff has failed to raise a triable issue of material fact regarding whether Defendant breached the standard duty of care owed to Plaintiff.

While Defendant's expert opined that 15-minute monitoring met the standard of care, Plaintiff's expert opined that "[t]he standard of care for residential treatment programs serving youth with significant psychiatric instability and behavioral dysregulation requires that staff supervision is reasonably unpredictable in timing and includes active monitoring of resident movement, not merely periodic visual confirmation that a resident is in bed." (Madaus Decl., ¶ 27.) Here, Plaintiff evidences through Defendant's own round log that Defendant did indeed comply with its own policy of 15-minute patient observation rounds and unpredictable staff supervision. The report log demonstrates that a Bed Check was made at an unpredictable time during 15-minute intervals. Plaintiff's COE, Exh. 11 demonstrates the procedure was followed on the date of the Incident through the following report log for July 2, 2021, the date of the Incident:

[Diagram shown]
(Plaintiff's COE, Exh. 11.)

The Court finds that the report log demonstrates a 15-minute interval schedule, whereby a Bed Check is made at an unpredictable time within those 15 minutes. Indeed, Defendant's staff performed a bed check at 10:12 p.m., 10:18 p.m., and 10:54 p.m. A patient such as Plaintiff would be unable to predict the exact timing of the next Bed Check.

Plaintiff has also failed to raise a triable issue of material fact regarding causation.

It is undisputed that "[i]n an effort to avoid being detected by Facility staff during Bed Checks by having a minor female, S.U., keep 'look out' for staff, Plaintiff entered the adjacent room of shared [sic] by two minor girls, S.U. and A.C. during evening hours of [July 2, 2021] and engaged in illicit activity with the girls." (SSUMF No. 10, underline deleted.) It is also undisputed that "Plaintiff 'broke the rules' of the Facility when he entered A.C.'s and S.U.'s shared room in the evening on July 2-July 3, 2021." (SSUMF No. 14.) The evidence also demonstrates that Deputy Richard Ramirez and one of the female minors testified that the sexual activity between the minors occurred by mutual assent and planning between John Doe and A.C. and that no force, threat or duress was used by any of the minors involved in the sexual incident. (Plaintiff's COE, Exh. 19, Ramirez's Dep. at 25:11-26:2; Plaintiff's

COE Exh. 8, S.U.'s Dep. at 76:16-89:18.) Thus, even if Defendant somehow breached its duty of care to Plaintiff, Plaintiff cannot establish that such breach caused his injury.

Plaintiff has failed to raise a triable issue of material fact regarding whether Defendant breached the duty of care owed to Plaintiff and whether Defendant's breach caused Plaintiff's injuries.

Accordingly,
Defendant's motion for summary judgment is GRANTED.